

**13. 9:00 AM CASE NUMBER: C25-03405**  
**CASE NAME: PATRICIA WELLER VS. THEODORE SABERI**  
**HEARING ON DEMURRER TO: TO: 1ST AMENDED COMPLAINT**  
**FILED BY: RIZVI, DOLLY**  
**\*TENTATIVE RULING:\***

Defendant Dolly Rizvi's Demurrer to the First Amended Complaint (FAC) is **sustained with leave to amend**. Defendant shall prepare the order pursuant to California Rules of Court, rule 3.1312 and serve and file notice of entry of order. Plaintiff shall have 30 days from the date of service of the notice of entry of order in which to file and serve a second amended complaint.

### **Background**

This case arises out of an alleged physical assault on Plaintiff Patricia Weller while she was a resident at Walnut Creek Willows, a residential care facility for the elderly (RCFE) located at 2015 Diablo Boulevard in Walnut Creek. The facility was owned and operated by Razel and Ruztin, LLC. According to the FAC, Defendant Dolly Rizvi served as the administrator of Walnut Creek Willows in 2018 and is identified in California Department of Social Services (DSS) records as administrator during an annual inspection on June 21, 2023. Defendant Marisol Goco is alleged to have been an administrator charged with overseeing operations and ensuring regulatory compliance, and Defendant Theodore E. Saberi was a co-resident at the facility.

Plaintiff alleges that in 2018, Rizvi authorized Saberi's admission to Walnut Creek Willows even though she knew or should have known that Saberi was ineligible for residency. Specifically, the facility's license restricted admissions to individuals aged 60 and older (whereas Saberi was born in September 1964), and barred individuals with conditions such as paranoid schizophrenia, from which Saberi allegedly suffered. Plaintiff alleges that by admitting Saberi in violation of the facility's license and acuity limits, Rizvi exposed residents such as Plaintiff to an unreasonable risk of harm.

The FAC further alleges that on June 21, 2023, DSS conducted an annual inspection and directed the facility to provide proof of required liability insurance pursuant to Health & Safety Code section 1569.605 by June 28, 2023. The facility failed to do so, and Plaintiff claims it operated without liability insurance from June 28, 2023 through November 15, 2023. Plaintiff alleges that Rizvi and Goco owed fiduciary duties to residents arising from their regulatory responsibilities to ensure compliance with section 1569.605, and that both administrators breached those duties by concealing the lack of insurance from DSS and Plaintiff. Plaintiff alleges that had she known the facility was uninsured, she would have terminated or declined to renew her residence agreement and vacated the facility. Additionally, Plaintiff alleges that Goco committed financial elder abuse by collecting monthly residential fees from July 1, 2023, through November 15, 2023, while knowing the facility was operating out of compliance with statutory insurance mandates.

On November 15, 2023, Saberi allegedly attacked and beat Plaintiff at the facility, causing severe physical and emotional injuries and terminating her residency. Based on these events, the FAC asserts five causes of action against Defendants Theodore Saberi, Dolly Rizvi, and Marisol Goco: (1) intentional tort (battery/assault) against Saberi; (2) breach of fiduciary duty against Rizvi for concealing the lack of liability insurance; (3) negligence against Rizvi for the 2018 admission of Saberi;

(4) breach of fiduciary duty against Goco for concealing the lack of liability insurance; and (5) financial elder abuse against Goco for wrongfully taking residential fees while operating without insurance. Plaintiff seeks compensatory damages for medical expenses and pain and suffering, restitution of residential fees paid from July to November 2023, punitive damages, and attorney fees.

Defendant Dolly Rizvi now demurs to the second cause of action for breach of fiduciary duty and the third cause of action for negligence arguing that neither states facts sufficient to constitute a cause of action.

### **Demurrer Standard**

A complaint must contain "[a] statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc. § 425.10, subd. (a)(1).) This fact-pleading requirement obligates the plaintiff to allege ultimate facts that "as a whole apprise[ ] the adversary of the factual basis of the claim. [Citations.]" [Citations.]" (*Davaloo v. State Farm Ins. Co.* (2005) 135 Cal.App.4th 409, 415.)

A demurrer can be used only to challenge defects that appear within the "four corners" of the pleading, which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A complaint must be liberally construed on demurrer. (Code Civ. Proc. § 452; *Stevens v. Superior Court* (1999) 75 Cal. App. 4th 594, 601.) "A demurrer tests only the sufficiency of the allegations. It does not test their truth, the plaintiff[s] ability to prove them or the possible difficulty in making such proof." (*Saunders v. Superior Court* (1994) 27 Cal.App.4th 832, 840.)

"[I]t is error for a trial court to sustain a demurrer when the plaintiff has stated a cause of action under any possible legal theory." (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1358.) "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.)

### **Preliminary Matters and Evidentiary Submissions on Demurrer**

In support of her demurrer, Defendant Rizvi submits a Request for Judicial Notice spanning ten multi-part exhibits, accompanied by declarations from defense counsel Frank S. Moore, facility owner Beth Cortez, and Defendant Rizvi. Defendant asks the Court under Evidence Code section 452, subdivisions (c), (d), and (h) to take judicial notice of: (1) pleadings, complaints, and orders from separate state court actions (*Weller v. Razel & Ruztin, LLC*, Case No. C23-03310; *Weller v. California Health and Human Services Agency*, Case No. C25-00727); (2) Chapter 11 bankruptcy filings and reorganization plan documents from the United States Bankruptcy Court (In re: Razel & Ruztin, LLC, Case No. 24-41003); (3) safe-harbor notices of intent to seek sanctions under Code of Civil Procedure section 128.7; (4) declarations from Rizvi and Cortez attesting to employment start and termination dates; and (5) numerous Facility Evaluation Reports and Complaint Investigation Reports from 2021 through 2025 issued by the California Department of Social Services (DSS), Community Care Licensing Division.

Rather than offering these materials merely to establish their existence or filing dates, Defendant relies on their evidentiary contents to contradict the complaint on its face and disprove Plaintiff's

factual allegations. Defendant uses the Cortez and Rizvi declarations to assert as an indisputable fact that Rizvi stopped working at the facility on December 7, 2020, and was not employed at the time of the 2023 assault or insurance lapse. Defendant analyzes DSS reports to argue that the administrative header field listing Rizvi as "Administrator" was a stale "static database artifact." (See Def.'s Demurrer at p. 7:3–5.) Defendant urges the Court to credit the DSS investigator's hearsay recitals, stating that prior administrator Cecily Palma was terminated the day before the June 21, 2023 inspection, to make an affirmative factual finding that Rizvi was not the acting administrator and that the facility was without an administrator on that date.

Submission of evidence in opposing a demurrer is improper: it is a fundamental principle that a demurrer "tests the pleadings alone and not the evidence or other extrinsic matters." (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) Evidence such as declarations cannot properly be considered on a demurrer. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881; *Hibernia Savings & Loan Soc. v. Thornton* (1897) 117 Cal. 482, 482.) While a court may take judicial notice of the existence of court records and state agency reports under Evidence Code section 452, subdivisions (c) and (d), it is prohibited from taking judicial notice of the truth of hearsay statements or disputed factual assertions in those documents.

The Court grants judicial notice of Exhibits A, B, C, D, E, and F to establish the existence, filing, and recordation of the respective court records and orders in this action, Contra Costa County Superior Court Case Nos. C23-03310 and C25-00727, and U.S. Bankruptcy Court Case No. 24-41003. The Court does not take judicial notice of the truth of any hearsay statements, legal arguments, or disputed factual allegations contained within those documents.

The Court denies judicial notice of Exhibits G and H. an unfiled safe-harbor notice of intent to seek sanctions and contested witness declarations concerning dates of employment are not indisputable facts capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy under Evidence Code section 452(h). Extrinsic declarations may not be considered on demurrer to contradict the complaint.

The Court grants judicial notice of Exhibit J pursuant to Evidence Code section 452, subdivision (c), only as to the official acts of the California Department of Social Services, Community Care Licensing Division, in issuing the regulatory Facility Evaluation Reports and Complaint Investigation Reports on the dates indicated. The Court declines to take judicial notice of the truth of the matters stated in the documents, including regarding who was actually employed or serving as facility administrator during the periods at issue.

### **Sham Pleading Argument**

Building upon these evidentiary submissions, Defendant argues the FAC is a "sham pleading" because Plaintiff narrowed the dates of Rizvi's alleged administrator status after being served with Defendant's draft Code of Civil Procedure section 128.7 safe-harbor motion and accompanying declarations from Rizvi and facility owner Elizabeth Cortez (submitted as Exhibit H to Defendant's RJN), which attest that Rizvi ceased working at the facility in December 2020. The sham pleading doctrine applies where an amended complaint omits or contradicts harmful factual admissions made in a prior pleading without adequate explanation. (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425-426.) The doctrine

does not permit a defendant to submit outside witness declarations, unfiled section 128.7 safe-harbor notices, or the hearsay narratives and inspector notes within state agency reports to disprove a plaintiff's allegations of fact and label the pleading a "sham." Whether the DSS database header was an outdated clerical artifact or whether Rizvi ceased employment in 2020 are contested issues of fact that cannot be resolved on demurrer.

Defendant's request to disregard the FAC's allegations under the sham pleading doctrine is denied.

### **Sufficiency of the Second Cause of Action for Breach of Fiduciary Duty**

The elements for breach of fiduciary duty are: (1) the existence of a fiduciary relationship; (2) breach; and (3) damages proximately caused by the breach. (See *LaMonte v. Sanwa Bank Cal.* (1996) 45 Cal.App.4th 509, 517.)

In the second cause of action, Plaintiff alleges that she was a resident of Walnut Creek Willows and Rizvi was its administrator, citing Department of Social Services (DSS) records reflecting Rizvi's administrator status during an annual inspection on June 21, 2023. Plaintiff asserts that Rizvi was responsible for managing facility operations and ensuring compliance Health and Safety Code section 1569.605 which mandates that residential care facilities maintain commercial liability insurance. Plaintiff asserts that this statutory compliance obligation created a relationship of trust and confidence between Rizvi and Weller, thereby transforming Rizvi into a fiduciary regarding the facility's duty to maintain insurance coverage.

Plaintiff alleges that following the June 21, 2023 inspection, DSS ordered the facility to submit a certificate of liability insurance by June 28, 2023, but it failed to do so and remained completely uninsured through November 15, 2023. Plaintiff claims Rizvi breached her fiduciary duty by failing to report the absence of liability insurance to DSS and by concealing the lapse from Plaintiff herself. Plaintiff alleges that had Rizvi disclosed the lack of insurance, she would have terminated her agreement and moved out before November 15, 2023, thereby avoiding the altercation with co-resident Saberi and her alleged injuries.

Defendant argues that whether a fiduciary duty exists in the first instance is a question of law (*David Welch Co. v. Erskine & Tulley* (1988) 203 Cal.App.3d 884, 890), and that breach of fiduciary duty is a tort that may be committed only by a limited class of persons. (*1-800-Contacts, Inc. v. Steinberg* (2003) 107 Cal.App.4th 568, 592.) While an RCFE licensee owes an ordinary duty of due care to its residents arising from a special relationship (*Klein v. Bia Hotel Corp.* (1996) 41 Cal.App.4th 1133, 1140), that case did not address whether a fiduciary duty exists, and Defendant cites no authority establishing that an administrator cannot, as a matter of law, owe a fiduciary duty to a resident. Nonetheless, neither party cites authority affirmatively establishing a fiduciary relationship between an RCFE administrator and a resident. Furthermore, it does not appear that administrative regulations under Title 22 or statutory compliance mandates under Health and Safety Code section 1569.605 can create such a duty.

Even so, California law recognizes that a fiduciary relationship may arise in fact depending on the specific circumstances of the parties' dealings. A fiduciary relationship is "any relation existing between parties to a transaction wherein one of the parties is in duty bound to act with the utmost

good faith for the benefit of the other party. Such a relation ordinarily arises where a confidence is reposed by one person in the integrity of another, and in such a relation the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating to the interest of the other party without the latter's knowledge or consent ... " (*Wolf v. Sup. Ct.* (2003) 107 Cal.App.4th 25, 29.) "The essence of a fiduciary or confidential relationship is that the parties do not deal on equal terms, because the person in whom trust and confidence is reposed and who accepts that trust and confidence is in a superior position to exert unique influence over the dependent party." (*Barbara A. v. John G.* (1983) 145 Cal.App.3d 369, 383.) "A confidential relation may exist although there is no fiduciary relation ... " (*Vai v. Bank of America* (1961) 56 Cal.2d 329, 337-338.) Whether a confidential relationship generates a fiduciary duty is a question of fact turning on: "1) The vulnerability of one party to the other which 2) results in the empowerment of the stronger party by the weaker which 3) empowerment has been solicited or accepted by the stronger party and 4) prevents the weaker party from effectively protecting itself." (*Richelle L. v. Roman Catholic Archbishop* (2003) 106 Cal.App.4th 257, 272.)

Although the Court is skeptical that regulatory compliance obligations can give rise to a fiduciary duty regarding commercial insurance, because this is the first demurrer addressed to this cause of action, Plaintiff is granted leave to amend.

### **Sufficiency of the Third Cause of Action for Negligence**

Defendant Rizvi demurs to the third cause of action on the ground that she owed no legal duty to protect Plaintiff from the criminal acts of a third party, and that the 2018 intake of Saberi cannot support a negligence claim for an assault occurring five years later. Plaintiff contends that Rizvi owed an actionable duty of care by virtue of facility licensing restrictions and her administrative role, but Notably, in opposing the demurrer, Plaintiff does not cite any authority that an RCFE administrator or supervisory employee personally owes a common law duty to protect facility residents from the criminal acts of a co-resident.

"Generally speaking, all persons have a duty to take reasonable care in their activities to avoid causing injury, though particular policy considerations may weigh in favor of limiting that duty in certain circumstances." (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 209.) Determining whether a defendant owes a legal duty to protect a plaintiff from injuries caused by a third party is governed by a two-step inquiry. (*Ibid.*) First, the court must determine whether there exists a special relationship between the parties, either between the defendant and the third party or between the defendant and the victim, or some other set of circumstances giving rise to an affirmative duty to protect. (*Ibid.*) Second, if a special relationship exists, the court must consult the factors described in *Rowland v. Christian* (1968) 69 Cal.2d 108 to determine whether relevant policy considerations counsel limiting that duty. (*Ibid.*)

"A special relationship between the defendant and the victim is one that 'gives the victim a right to expect' protection from the defendant, while a special relationship between the defendant and the dangerous third party is one that 'entails an ability to control [the third party's] conduct.'" (*Brown, supra*, 11 Cal.5th at p. 216.) "The existence of such a special relationship puts the defendant in a unique position to protect the plaintiff from injury." (*Ibid.*) Where an affirmative duty to protect is recognized, it typically rests on specific factual allegations showing active care, custody, or direct

supervision, such as promises of continuous monitoring, contemporaneous reliance, and an immediate ability to control the environment or the individuals involved. (See, e.g., *Hernandez v. KWPH Enterprises* (2004) 116 Cal.App.4th 170, 179.)

Even where a special relationship might exist, the *Rowland* factors must be considered: "the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved." (Rowland, supra, 69 Cal.2d at p. 113.) When the connection between the conduct and the injury is extraordinarily attenuated, or the risk of third-party violence is unforeseeable, policy considerations counsel against recognizing an affirmative duty. (*Brown, supra*, 11 Cal.5th at p. 219.)

Here, Plaintiff alleges only that: (1) in 2018, Rizvi was the administrator and Saberi was admitted; (2) Rizvi knew or should have known Saberi was under age 60 and had paranoid schizophrenia, which ran contrary to the facility's license; and (3) Rizvi's admission of Saberi in 2018 was a substantial factor in Saberi assaulting Plaintiff in November 2023.

These sparse allegations are insufficient to establish a legal duty. First, Plaintiff pleads no facts showing that Rizvi personally had a special relationship with Weller giving Weller a right to expect personal protection from her, or that Rizvi personally possessed the ongoing ability to control Saberi. While a residential care facility as an institution may enter into special relationships with its residents, Plaintiff does not allege that Rizvi entered into an independent, individual caretaker relationship with Weller. The complaint also fails to plead facts establishing that Saberi presented a foreseeable danger of physical violence. Plaintiff merely alleges Saberi's age and a medical diagnosis of paranoid schizophrenia. A mental health condition and an administrative licensing age restriction do not, without more, establish a foreseeable propensity for violent battery. Third, under the *Rowland* analysis, the connection between Rizvi's conduct and Plaintiff's injury is extraordinarily remote. Plaintiff seeks to hold an individual former administrator personally liable for an assault committed in late 2023 based solely on an alleged admission decision made five years earlier in 2018. The complaint alleges no facts showing that Rizvi observed violent outbursts, managed Saberi's care plan, had any ongoing supervisory presence, or was even employed at the facility when the 2023 assault occurred.

Accordingly, the demurrer to the third cause of action is sustained with leave to amend for Plaintiff to allege facts establishing that Defendant owed a legal duty of care to Plaintiff, and that her conduct was a proximate cause of Plaintiff's alleged injuries. While the Court does not expect excruciating evidentiary detail at this pre-discovery stage, Plaintiff must nonetheless allege sufficient ultimate facts to state a viable claim against Rizvi individually.

### **Disposition**

Based on the foregoing, Defendant's Demurrer to the FAC is sustained with leave to amend as to the second and third causes of action. Defendant shall prepare the order pursuant to California Rules of Court, rule 3.1312, and serve and file notice of entry of order. Plaintiff shall have 30 days from the date of service of the notice of entry of order in which to file and serve a second amended complaint.

The parties are expected to strictly comply with their meet-and-confer obligations under the Code of Civil Procedure before any further demurrer is filed. Counsel should also discuss whether targeted informal discovery or document production would satisfy Plaintiff regarding Defendant Rizvi's actual dates of employment and the scope of her personal involvement, if any, in the matters alleged.

**14. 9:00 AM CASE NUMBER: C26-00506**  
**CASE NAME: GABRIELLA KOMISAR VS. JESSE WALTERS**  
**\*MOTION/PETITION TO COMPEL ARBITRATION**  
**FILED BY: WALTERS, JESSE**  
**\*TENTATIVE RULING:\***

The Court continues the hearing on this motion to October 16, 2026, at 9:00 a.m.

**15. 9:00 AM CASE NUMBER: C26-00506**  
**CASE NAME: GABRIELLA KOMISAR VS. JESSE WALTERS**  
**HEARING IN RE: NOTICE OF SPECIAL APPEARANCE BY CHERI DOVE TO JOIN PETITION TO COMPEL ARBITRATION**  
**FILED BY: CASWELL BAY, INC. DBA HILLENDALE HOME CARE**  
**\*TENTATIVE RULING:\***

The Court continues the hearing on this motion to October 16, 2026, at 9:00 a.m.

**16. 9:00 AM CASE NUMBER: MSC21-00679**  
**CASE NAME: TABERNACLE BAPTIST VS TABERNACLE CHRISTIAN**  
**\*HEARING ON MOTION IN RE: ATTORNEYS FEES AND COSTS**  
**FILED BY: TABERNACLE CHRISTIAN SCHOOLS, INC.**  
**\*TENTATIVE RULING:\***

Before the court is Defendant's Motion for Attorneys' Fees and Costs, filed May 7, 2026. The Defendant originally sought \$659,532.50 in attorneys' fees and \$63,579.82 in costs, for a total of \$723,112.32. (Tabernacle Christian Schools, Inc.'s Memorandum of Points in Support of Motion for Attorneys' Fees and Costs, (Motion, page 2:7-8.) The motion is granted with some reductions.

The court grants the Defendant's Request for Judicial Notice as to Exhibits 1-4 only.

The Defendant argues it is entitled to recover reasonable attorneys' fees and costs under the Lease as the prevailing party. Specifically, Defendant argues it is entitled to recover fees under Section 25.04 of the Lease, Section 1021 of the Code of Civil Procedure (CCP), and Section 1717 of the Civil Code. Plaintiff does not oppose this argument in its Opposition.

The Court agrees with the Defendant. The Lease, the law and the fact of Defendant being the prevailing party in the litigation all support an award of reasonable attorneys' fees to the